

UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW

CRIMINAL LAW2

GENERAL ASSAULTS

P.S Austin - 08/8

Introduction

In this module, we shall examine the offences of assault generally, excluding sexual assaults. Assaults fall within the rubric of offences affecting the human body.

ASSAULT

As a crime, assault is an offence involving personal violence or threat thereof. The purpose of the law in the context of this offence is to prohibit a person from putting another in fear of physical interference. It prohibits all physical interference with another person including revenge attack. Assault is the intentional or reckless interference with the body of another person by an individual or group of individuals. It has been described as an invasion of the body of another person. Assault originated as a common law offence. Under the common law, assault is simply an attempt or a threat to apply unlawful force on another person in such a way that he believes that such force is about to be applied on him. At common law, there was a distinction between the offence of assault and the offence of battery as two separate offences. Assault is regarded as the attempt or threat to apply force and the apprehension in the mind of the victim that a force is about to be applied to him. On the other hand, battery is the actual application of the said force on the victim.

Note that under Nigerian law, the term 'assault' covers the meaning of both assault and battery at common law. The Nigerian position is obviously in consonance with the statement of James J., in *FAGAN v. METROPOLITAN POLICE COMMISSIONER* (1969) 1 QB 439 that: *"Although assault is an independent crime and is to be treated as such, for practical purposes today, 'assault' is generally synonymous with the term 'battery' and it is a term used to mean the actual intended use of unlawful force".*

Fagan v. Metropolitan Police Commissioner

In Nigeria, assault is defined in section 252 of the Criminal Code and section 264 of the Penal Code. According to section 252 of the Criminal Code, "a person who strikes, touches or moves or otherwise applies force of any kind to the person of another, either directly or indirectly without his consent or with his consent obtained, if the consent is obtained by fraud, or who by any bodily act or gesture attempts or threatens to apply force of any kind to the person of another without his consent, in such circumstances that the person making the attempt or threat

has actually or apparently a present ability to effect his purpose, is said to assault that other person and the act is called an assault". The section went further to provide that the term 'applies force' includes the case of applying heat, light, electrical force, gas, odour or any other substance or thing whatever, if applied in such a degree as to cause injury or personal discomfort.

The first thing that emerges from the above definition is the absence of words requiring mental element which thereby gives the impression that assault is a strict liability offence. The truth of the matter is that mental element is necessary for the offence of assault to be complete. Another thing one can again notice from the section is that unlike in common law, there is no requirement that for an act to qualify as assault, it must cause an apprehension or expectation of unlawful force in the mind of the victim. The learned writers, Okonkwo and Nalsh believes that notwithstanding the absence of this requirement in the Criminal Code, Nigerian courts will follow English law and hold that there must be caused in the victim's mind some expectation of immediate force, for an act to amount to assault. Thus, it will not be an assault under the Code to threaten to strike a sleeping man, or to threaten to strike a person from his back who is unaware of what you are doing.

Note that in considering at the victim's state of mind, it is not necessary that his state of mind must necessarily be one of fear or alarm, it is sufficient if he merely expects the application of an unlawful force on him. See *BRADY v. SCHARZEL* (1911) St. R. Qd. 206 where the accused pointed a loaded gun at the prosecutor and threatened to shoot him. Even though the prosecutor admitted that he was not scared of the gun, the court found the accused guilty of assault as his act caused an apprehension of a looming force on the victim. See also *R V. ST. GEORGE* (1840) 173 ER 921 where the accused pointed an unloaded gun on the victim who was unaware that it was unloaded. The court found the accused guilty of assault even though the gun was unloaded as his act put the victim in fear of being shot. Note that the punishment for assault is one year imprisonment upon conviction.

Ingredients of the offence of Assault

The following are the material ingredients or elements for the offence of assault:

- (1) **The accused person must have either struck, touched, moved or applied force or threatened the use of force against another.** Note that these acts could be established either directly or indirectly. Thus, it is direct if the accused hits his victim on the head, but indirect where he climbs a tree and drops oranges towards the victim who was relaxing under the tree, even if the dropped oranges did not hit the victim.
- (2) **The assault must be unlawful.** An assault is unlawful if it is not justified by law, authorized or excused by law. Assault may also be justified under circumstances of emergency or necessity. See section 253 of the Criminal

Code. Where a convict is given several strikes of the cane in accordance with a court sentence imposed on him, he cannot be heard to cry of assault as the said assault is lawful. Parents are entitled to correct their children by beating them up and such is justified by law. The same also applies to teachers of children and young persons, provided it was done for the purpose of correction and does not result in wounding or grievous bodily harm. See section 295 of the Criminal Code. The child here must be under sixteen years of age. Parents and guardians can delegate their disciplinary authority to any fit person. Note that in England, the giving of corporal punishment to children has been abolished. Also note that acts done in cases of emergency to save lives are justified by law and cannot be termed as unlawful assault. A person may also assault another in defence of himself or his property and the same is amply justified by law.

- (3) **The person assaulted must not have consented to the assault.** Consent negatives liability for the offence of assault on the ground of *VOLENTI NON FIT INJURIA*. Note that the law presumes that persons who go about in public consent to that degree of contact which is an inevitable incident in everyday life. Thus, if A loses his pen and B having found it, taps A on the shoulder to give him the pen, no assault has been committed thereby. Again, if two persons struggle to join a bus and one in the process one pushes the other person, no assault is committed. In sports generally, it is inevitable for participants to come in bodily contact with one another. Such contacts do not constitute assaults.

Note that for a consent to negative liability for the offence of assault, it must be real, valid and lawful. In other words, consent obtained by fraud or under duress, deceit, deception, intimidation, mistake and misrepresentation are not consent in the eyes of the law. In the same vein, it must always be shown that the person who gave the consent truly had capacity to do so. Thus, a consent given by a child or a person of weak mental intelligence like an imbecile or one who is insane is not a valid or proper consent.

Note however the exception contained in section 253 of the Criminal Code which states that some assaults done with the consent of the victim will still amount to assault. This is usually where the amount of force applied is disproportionate or unreasonable in the circumstance. Thus, a consent that will cause grievous bodily harm or endanger human life will be invalid in the eyes of the law.

- (4) **Apprehension of Immediate application of unlawful force.** As pointed out earlier, this requirement is not expressly contained in section 252 of the Criminal Code, but the courts have implied it by practice. Note that the

- (3) **The act of the act must have caused grievous bodily harm to the victim.**
 Note the definition of harm and grievous bodily harm in section 1 of the Criminal Code. Note also that in practice, the presence of harm is not established by bare words of mouth. More often than not, they are usually established through medical evidence adduced by a medical expert. It is sufficient if a medical report issued by such a medical expert is produced and tendered, although the expert himself is not called as a witness.
- (4) **The grievous bodily harm must be shown to have affected another person.** In other words, the harm must be suffered by another human person. Where such harm are caused to animals or other inanimate things, an offence cannot lie under section 335 of the Criminal Code. The same also goes to where the harm is sustained by the accused himself.

SERIOUS ASSAULT/ASSAULTS ON LAW ENFORCEMENT AGENTS

This assault is contained in section 356 of the Criminal Code which provides as follows:-

Any person who:

- (1) Assaults another with intent to commit felony or with intent to resist or prevent the lawful arrest or detention of himself or of any other person; or*
- (2) Assaults, resists or wilfully obstructs a police officer while acting in the execution of his duty, or any person acting in aid of a police officer while so acting; or*
- (3) Unlawfully assaults, resists or obstructs any person engaged in the lawful execution of any process against any property, or in making a lawful distress, while so engaged; or*
- (4) Assaults, resists or obstructs any person engaged in such lawful execution of process or in making a lawful distress with intent to rescue any property lawfully taken under such process or distress; or*
- (5) Assaults any person on account of any such act done by him in the execution of any duty imposed on him by law; or*
- (6) Assaults any person in pursuance of any unlawful conspiracy respecting any manufacture, trade, business or occupation or respecting any person or persons concerned or employed in any manufacture, trade, business or occupation or the wages of any such person or persons*

Is guilty of a felony and is liable to imprisonment for three years.

Note that a vital ingredient of his offence is that the Police officer was acting in the lawful execution of his duties. Thus, where he is acting illegally in the discharge of his duty or has exceeded his authority in the process, he is no longer acting in the lawful execution of his duty and it will not be an offence under this section to

assault, resist or obstruct him. See *LADAN v. ZARIA N.A.* (1982) N.R.N.L.R. 53. See also *R v. QUINN* (1944) 10 WACA 243, which is a Gambian case. In this case, a police officer entered a Royal Airforce camp without a search-warrant to investigate a criminal matter. The Appellant who is an Airforce officer found him in their camp and ordered him to leave the camp since he had no warrant on him. The officer then ordered another of his colleagues to throw the police officer out. Although the trial court convicted the naval officer for serious assault on the police officer, the West African Court of Appeal however set aside his conviction holding that because the police had no warrant with him, he became a trespasser the moment he was ordered to leave and he refused and the Naval officer was right to order him to be thrown out. See also *DAVIS v. LISLE* (1936) 2 KB 434. Compare with *POLICE v. IGWE & ORS* (1961) 1 ALL NLR 9 where it was held that the police officers who entered a private premises without a warrant were in the lawful execution of their duty. In *OGBOMO v. police* (1957) W.R.N.L.R. 200, it was held that because a police officer is entitled to arrest any person upon reasonable suspicion of having committed an offence, he is entitled to apprehend anyone who has been declared wanted for any criminal offence, and where he sees such a wanted person and attempts to arrest him, but was assaulted by the wanted person, the police officer was squarely acting in the lawful execution of his duty and the wanted person was guilty of serious assault upon the police officer.

DEPRIVATION OF LIBERTY/FALSE IMPRISONMENT

This is the criminal version of the tortious wrong of false imprisonment. It was described by the court in *JIM-JAJA v. COP* (2011) 2 NWLR (Pt. 1231) 375 at 379 as the unlawful restraint of a person in an area without justification. Every person under the constitution is entitled to the twin-rights of personal liberty and freedom of movement and whenever these rights are undermined without lawful excuse or justification, it qualifies as an offence of deprivation of liberty or false imprisonment. This offence is provided for in section 365 of the Criminal Code which provides thus: "*Any person who unlawfully confines or detains another in any place against his will or otherwise unlawfully deprives another of his personal liberty is guilty of a misdemeanor and is liable to imprisonment for two years*". There is no specified period of time a confinement may last before it would amount to an offence. In *AUSTIN & ANOR v. COP OF THE METROPOLIS* (2007) STR 1, the confinement was for several hours. In *JIM-JAJA v. COP* (supra), the detention was for less than 24 hours.

Ingredients

To establish this offence, the following ingredients must be established:

- (1) It must be shown that the accused confined, detained or deprived the victim of his liberty. In other words, there must have been a restraint of some type. Note that the use of physical contact or force is not necessary. Physical barriers, threats or duress may constitute confinement.

- (2) It must be shown that the confinement or detention of the victim was unlawful. The term 'unlawful' means without any justification, authority or excuse. See *JIM-JAJA v. COP* (supra). In *AUSTIN & ANOR v. COP OF THE METROPOLIS* (supra), there was an alleged unlawful detention of hundreds of members of the public during the May Day riot in 2001 in London. The Police were alleged to have detained a large crowd of protesters at Oxford Circus for several hours before allowing anyone to leave. Austin, a peaceful demonstrator who had not broken the law and another person called Saxby, who was an innocent passer-by not involved in the demonstration sued the police claiming that they were falsely detained. In dismissing their claim, the court held that the action of the police which was informed by the need to quell the demonstration and restore peace and order was not unlawful in the circumstance. Note also that in section 35 of the 1999 Constitution, a person's liberty may be derogated from inter-alia, on grounds of national security, national health and even parental discipline. Note however that it has been held to be a deprivation of liberty to falsely and maliciously report a person to the police and cause him to be detained upon a spurious, concocted and unfounded allegations. See *JIM-JAJA v. COP* (supra); *EDOSONWAN v. OGBEIFIAN* (1983) 1 FWLR 1000.
- (3) The place of confinement that sustains this charge is not limited only to a prison, police cell or a room. The confinement, detention or deprivation of a person's liberty could be at any place. It could be in a cell, room, open field, vehicle or any place whatsoever. The requirement is satisfied as long as the victim is made to remain where he or she does not want to be or to go where he or she does not want to go.
- (4) It must be shown that the victim did not consent to the confinement or deprivation of his liberty. Consent here must be real and consent obtained fraudulently or unfairly will not suffice.
- (5) It must also be shown that the confinement or restraint of the victim was total and complete. Deprivation is complete when the defendant directly and intentionally caused the confinement of the victim and completely deprives him of his liberty. It is total where the victim does not have a reasonable way of free movement, escape, exit or route. See *BIRD v. JONES* (1875) 7 QB 742. Note that where the available route of escape or freedom is such that it will endanger the life of the victim, it would be held that there is no reasonable route of escape.
- (6) Note also that intention of the accused is irrelevant in this offence in so far that the accused has no justification for the confinement or detention of the victim. A reckless or negligent act of the accused resulting in the deprivation of liberty will make the accused liable.

KIDNAPPING

This offence is the taking of another person against his will. It is similar to false imprisonment because they both share the incidence of restraint, but they are certainly different and distinct offences. Kidnapping is a criminal offence of a serious nature. It is a felony under Nigerian law. This offence is provided for in section 364 of the Criminal Code which prescribes a punishment of 10 years for any one found guilty of it. But note that owing to the increasing cases of kidnapping in Nigeria, different States have enacted specific anti-kidnapping laws where the penalty for the offence has been raised to life imprisonment in some states, and death penalty in a few other states. In Rivers State, we have the Rivers State (Kidnap prohibition) Law No. 3 of 2009. Under this law, the offence of kidnapping carries the penalty of life imprisonment. Still under the same law, an attempt to commit the offence of kidnapping carries the penalty of twenty years imprisonment. In Edo State, kidnapping is equated with armed robbery.

Ingredients

In order to establish the offence of kidnapping, the following ingredients must be made out:

- (1) It must be established that the victim was imprisoned or confined in a building or an enclosed structure which is not accessible to the public. This is distinguishable from the offence of false imprisonment where the confinement could be anywhere, whether open or closed and the purpose is not to deny access to the victim, but to restrict him from having access to others. Note also that whereas, others may enjoy free access to the place of confinement in the case of false imprisonment, with respect to kidnapping, there is a total denial of access to everyone else.
- (2) There must be the taking or carrying away of the victim to another place where others cannot have free access to him. The taking or carrying away could be within or outside Nigeria. In *THE STATE v. UWAZURIKE*, the victim was taken into the house of the accused.
- (3) The act of taking or carrying away must be shown to be unlawful, meaning that it is neither justified, authorized nor excused by law.
- (4) It must be shown that the taking or carrying away of the victim was against his will. The meaning of this is that the victim did not consent to the act. Consent obtained by fraud, trick, deceit, intimidation or mistake will not suffice. Consent also obtained from an infant or a person without a sane mind will also be invalid.
- (5) The accused must have deprived or infringed the victim's personal liberty. Usually, kidnappers confine their victims and proceed to demand for the payment of ransom before they would be released. Such pieces of evidence are supportive of the deprivation of the victim's liberty.

DEFENCES TO THE OFFENCES OF ASSAULTS

Below are some of the general defences which could be raised against a charge of assault:

(1) Self-Defence and Defence to Property

Under Section 286 of the Criminal Code, when a person is unlawfully assaulted and he has not provoked the assault, it is lawful for him to use such force on the assailant as is reasonably necessary to make effectual defence against the assault. Note that the caveat to this provision is that the force used was not intended and was not likely to cause death or grievous bodily harm. It must be emphasized that for a person to avail himself of the defence under section 286 of the Criminal Code, he must establish the following:

- a) That there was an unprovoked attack launched on him by the assailant. Such attack may be an actual attack or an imminent threat to launch such an attack. In the case of the threat, the accused must show that he had an apprehension of immediate attack or danger.
- b) The actual attack or imminent danger or apprehension could be on the accused person or on another person known to him.
- c) The attack or apprehension must be such as to endanger life or limb.
- d) The force used must be reasonable to make effectual defence against the assault and must not be disproportionate or likely to cause death or grievous bodily harm. But note that where the assault launched is so severe or dangerous that only a lethal response can contain it, such a response even when it leads to death or grievous bodily harm, becomes reasonable and justifiable.

Note also that sections 289, 290, 291, 292 and 293 of the Criminal Code all contain provisions entitling a person in defence of his property, belongings and other persons known to him, to assault an attacker. Note also that the proviso to these sections is that the force used must be reasonable in the circumstance and must not be disproportionate to that used by the attacker.

(2) Provocation

The defence of provocation is also available to a person charged with the offences of assaults. This defence is provided for in section 284 of the Criminal Code: The section provides that a person is not criminally responsible for an assault committed upon a person who gives him provocation for the assault, if he is in fact deprived by the provocation of the power of self-control and acts upon it on the sudden and before there is time for passion to cool, provided that the force used is not disproportionate to

the provocation, and is not intended, and is not such as is likely to cause death or grievous bodily harm.

The defence of provocation is a concession given by the law to the weakness or frailty of the human person such that acts that are carried out in such moments when a person is provoked and reason has taken flight from him are not punished by the law. In *ONIYA v. STATE* (2006) 2 NWLR (Pt. 991) 271 the Court defined 'provocation' thus: "*Provocation means an act done by the deceased which would cause in any reasonable person and actually does cause in the accused, a sudden and temporary loss of self-control rendering the accused so subject to passion as to make him for a moment not master of his own mind*".

In *UWAGBE v. STATE* (2008) MJSC 191 the Supreme Court held that for a person to avail himself with the defence of provocation, he must establish the following:

- i) That he did the act in the heat of passion.
- ii) That the act was caused by sudden provocation.
- iii) That the act was committed before there was time for passion to cool.
- iv) That the mode of resentment must be proportionate to the provocation; and
- v) That the act relied on by the accused must be shown to be obviously provocative.

Note finally that where the defence of provocation is upheld in a case of Murder, it gives the accused partial freedom of reducing Murder to Manslaughter. But on the other hand, where the defence of provocation is upheld in a case of assault, it affords the accused person a total exculpation and entitles him to a discharge and acquittal.

apprehension may not necessarily be one of fear or alarm, provided there is the expectation of an imminent application of physical force. See *BRADY v. SCHATZEL* (supra). It is immaterial that the accused was not visible to the victim, so far as it is proved that the accused had the feeling of something bad which is going to happen to him as a result of the act of the accused. See *R v. CONSTANZA* (1997) 2 ALL E.R. 429 at 496. Note further that the apprehension may be caused by several things. Words alone constituted the assault in *R v. IRELAND* (1997) 4 ALL E.R. 225, while gesture and unwanted silence did it in *R v. BURSTOW* (1997) 1 Cr. App. R 144.

- (5) That the accused had the *mens rea* to commit the said offence. In other words, where an assailant acts under insanity or when he has lost control of his senses, he would not be guilty of the offence.

ASSAULT OCCASIONING GRIEVOUS BODILY HARM

This is a species of assault cognizable under the Criminal and Penal Codes. It is a severe assault and serious felony because it causes actual bodily harm than simple assault. Thus, it attracts more punishment than simple assault. The punishment for assault occasioning harm is 7 years imprisonment.

This offence is provided for in section 335 of the Criminal Code. According to the section, "any person who unlawfully does grievous bodily harm to another is guilty of a felony and is liable to imprisonment for even years". What does the word 'harm' mean in the above provision? Note that in an identical section in the Penal Code, the word used is not 'harm', but 'hurt'. By section 1 of the Criminal Code, harm is defined to mean 'any bodily hurt, disease or disorder whether permanent or temporary. Under the same section 1 C.C., 'grievous harm' is defined as any harm which amounts to a maim or dangerous harm as defined in this section or which seriously or permanently injures health or which extends to permanent disfigurement or to any permanent or serious injury to an external or internal organ, member or sense.

Ingredients of the Offence

- (1) It must be shown that the act of the accused which resulted in the harm was unlawful. This simply means that the act of the accused is not justified, authorized or excused by law. Note that in several sections of the Criminal Code specially, Sections 295, 296 and 297 of the Criminal Code, a person may commit assault, but such assaults are permitted or authorized by law and therefore not unlawful.
- (2) It must also be shown that the act committed the act intentionally. This involves the proof of *mens rea* as the offences of assault generally are not strict liability offences.